

State of Tennessee	Court (Must Be Completed)	County (Must Be Completed)
Sworn Denial (Sworn Denial on Account)		File No. _____ (Must Be Completed) Division _____ (Large Counties Only)
Plaintiff/Creditor _____ (Name: First, Middle, Last of person/company that filed lawsuit)		
Defendant/Debtor _____ (Name: First, Middle, Last of the other person)		

**You can use this form if you disagree with any of the Plaintiff's claims.
You should file the original with the court listed above by the court date.**

You may have to pay a filing fee. Can't afford the fee? Ask the court clerk for a paper called a Request to Postpone Filing Fees and Order (Uniform Civil Affidavit of Indigency). Or go on the internet to www.tncourts.gov or www.justiceforalltn.com to get the form.

Important! If you do not file this form, you can tell the judge that you disagree. But it is generally better to file the form to protect your rights.

I swear the following:

- ① I am the Defendant /Debtor in the case listed above.
- ② I believe I do not owe what the Plaintiff/Creditor is asking for, as described in the Complaint.
- ③ I understand that by making this statement, there may be a trial. Defendant submits this Sworn Denial as allowed by T.C.A. § 24-5-107 and demands strict proof thereof.
- ④ Please briefly list some of your reasons for your denial. You can raise additional defenses at the hearing. _____

Read below then sign:

I declare under penalty of perjury under the laws of the State of Tennessee that:

- The information on this form is true to the best of my knowledge.

Defendant:  _____ Date: _____

Sworn to and subscribed before me this the _____ day of _____, 20_____.

Name

Notary Public/Deputy Clerk in and for _____ County, Tennessee.

My Commission expires on _____.

IMPORTANT!

Take any proof that supports your case to the hearing, including: witnesses, photos, papers, receipts, etc. The court will not accept written statements from witnesses. The person must go to court in person. If you think a witness may not want to go to court, ask the clerk for subpoena forms. Complete the subpoena as soon as possible so the sheriff can serve them before court.

The court and clerks are not allowed to give you legal advice, even if you don't have a lawyer. This form is a public record. It is not legal advice. The law may change and it is best to consult with a lawyer.

Bring the original and 2 copies of this form to the Court Clerk to be date stamped.
Give the original to the Court Clerk.

Bring a stamped envelope addressed for each plaintiff to the Court Clerk. Mail one copy to the lawyer or if there is no lawyer, mail it to the plaintiff or company that sued you. Keep one copy for yourself.

Certificate of Service

(How I gave this paper to the Plaintiff/Creditor)

I certify that I (check one box)

hand delivered or

mailed by first-class mail, properly addressed, a true and correct copy of this paper to the person listed below at the address below:

Name of Who You Are Giving This To (The creditor's lawyer or the plaintiff/creditor if no lawyer)

Address of the Lawyer or the Creditor (Include City, State and Zip Code)

on _____.
(Date you mailed/hand-delivered the copy)



Sign Your Name